

New connection refused for want of landlord NOC — fresh consideration on indemnity bond

High Court of Judicature at Allahabad · Division Bench · 20 December 2011 · Writ-C No. 73618 of 2011 · **Disposed of; connection application to be considered afresh on indemnity bond.**

HEADNOTE

Rejection of a new-connection application solely for want of the landlord's no-objection certificate was not decided on merits. The Division Bench directed the licensee to intimate the applicant of Supply Code requirements, including the indemnity bond contemplated by clause 4.4 of the U.P. Electricity Supply Code, 2005, and to consider the application afresh after those formalities, preferably within three months.

FACTUAL SUMMARY

Dr. Dinesh Chandra applied for a new electricity connection. The Divisional Engineer rejected the application on 23 November 2011 solely because the landlord had not issued a no-objection certificate. The petitioner sought a writ quashing that order, contending that he had never been asked to furnish a bond or security and that clause 4.4 of the U.P. Electricity Supply Code, 2005 permits the licensee to supply energy on an indemnity bond even without the landlord's NOC.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new connection without landlord NOC — indemnity bond

HOLDING

Where a new-connection application is refused for want of the landlord's no-objection certificate, the licensee is to intimate the applicant of the Supply Code requirements including the indemnity bond contemplated by clause 4.4, and to consider the application afresh after those formalities, expeditiously and preferably within three months.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 23.11.2011 REJECTION WAS VALID, AND WHETHER THE PETITIONER IS ENTITLED TO A CONNECTION AS OF RIGHT

Writ disposed with a direction to consider the application afresh after Supply Code formalities including indemnity bond; no merits grant or quash.